CLIENT SERVICE AGREEMENT

Website and Software Development Services

Agreement Date: [DD Month YYYY]

Service Provider: [Your Company / Business Name]

Business Address: [Your Business Address]

Email: [Your Official Email Address]

Client Name / Business: [Client Name]

Client Address: [Client Address]

Client Email: [Client Email Address]

This Client Service Agreement ("Agreement") is entered into between the Service Provider and Client identified above. Each is a "Party" and together they are the "Parties."

1. Purpose of the Agreement

The Service Provider agrees to provide website development, software development, or related technical services according to the requirements agreed by both Parties.

This Agreement establishes the scope of work, payment terms, delivery expectations, intellectual property rights, and responsibilities of each Party.

2. Scope of Work

Services may include website design and development, e-commerce websites, portfolio or business websites, custom web applications, API integrations, database implementation, testing, and deployment, as listed in the approved proposal.

Project Name: [Project Name]

Project Description: [Describe the project and its purpose.]

Technology Stack: [e.g., React, Java, Spring Boot, MySQL]

Included Features: [List each agreed feature and deliverable.]

Only features and deliverables expressly included in the approved proposal or this Agreement are covered by the project fee. Additional functionality or significant changes require a written change request and may involve extra costs and time.

3. Project Timeline and Milestones

Estimated start date: [Start Date]. Estimated delivery date: [Delivery Date]. Milestones may include requirements and planning, UI/UX design and approval, development, testing and review, and final delivery and deployment.

The Service Provider will make reasonable efforts to meet the agreed timeline. Delays caused by missing Client information, delayed approvals, scope changes, or third-party service interruptions may require a reasonable timeline adjustment. Material changes will be communicated.

4. Project Fees and Payment Terms

Total agreed project fee: ■**[Total Amount]**, excluding applicable taxes unless otherwise stated.

Advance Payment: [e.g., 30%] before work begins.

Development Milestone Payment: [e.g., 40%] upon completion of the agreed development milestone.

Final Payment: [e.g., 30%] before final handover or transfer of deliverables, as agreed.

Complete the actual percentages and milestones before signing. The Service Provider will issue invoices or payment requests as appropriate. Third-party costs, including domains, hosting, premium plugins, software licences, and payment gateway charges, are excluded unless expressly included in the quotation.

If payment becomes overdue, the Service Provider may give written notice and suspend further work where permitted by this Agreement and applicable law.

5. Client Responsibilities

The Client agrees to provide accurate requirements and business information; supply text, images, logos, product information, and other materials; ensure they have rights to use supplied materials; review designs and deliverables within the agreed period; provide timely feedback and approvals; obtain required business registrations or permissions; and pay agreed fees.

Client-caused delays may affect the delivery schedule. The Client is responsible for the accuracy and legality of business content, product descriptions, prices, and other information supplied for publication.

6. Design Revisions and Additional Work

The project includes [Number] rounds of design revisions, as specified in the approved proposal. A revision is a reasonable adjustment to an existing agreed design or feature. A new feature, substantially different design, or change to an approved requirement may be treated as additional work.

Additional work will be discussed, quoted, and approved in writing before it begins. The Service Provider is not obligated to complete unapproved additional work without additional compensation.

7. Testing, Review, and Acceptance

The Service Provider will conduct reasonable testing before final handover. The Client will have [7] calendar days after delivery of the review version to identify material issues where deliverables differ from agreed specifications.

The Client should describe issues in reasonable detail. Requests for features outside the agreed scope will be handled as additional work. The review period does not remove rights or remedies available under applicable law.

8. Intellectual Property and Source Code

Each Party retains ownership of its pre-existing intellectual property, including existing software, reusable code, libraries, frameworks, templates, tools, processes, and materials owned or lawfully licensed by that Party. The Client retains rights in materials it provides.

Choose and complete one option before signing:

Option A — Transfer after full payment: Upon receipt of all applicable project fees, the Service Provider assigns to the Client the agreed transferable intellectual property rights in custom deliverables identified in the proposal, subject to third-party licences and applicable law.

Option B — Licence: The Service Provider retains ownership of the agreed deliverables and grants the Client a licence to use them under the scope and conditions specified in the proposal.

Under either option, pre-existing tools, reusable components, third-party materials, and open-source components remain subject to their applicable terms. Source code, deployment files, documentation, credentials, and other handover items will be identified in the proposal. No transfer or licence extends beyond rights the Service Provider is legally entitled to grant.

9. Confidentiality

Each Party agrees to protect the other Party's non-public business, technical, financial, and project information, use it only for the project, and avoid unauthorized disclosure.

These obligations do not apply to information publicly available without breach, independently developed, or lawfully received without confidentiality restrictions. Legally required disclosure is permitted to the extent required by law. Confidentiality obligations continue after the Agreement ends for as long as required by the Agreement or applicable

law.

10. Third-Party Services and Costs

The project may depend on domain registrars, hosting and cloud providers, payment gateways, external APIs, premium themes, plugins, and software licences. These may have separate charges, usage limits, terms, and renewal requirements.

Unless otherwise agreed, the Client is responsible for third-party subscriptions and renewals associated with accounts owned by the Client. The Service Provider is not responsible for independent third-party failures or changes outside its reasonable control, but will provide assistance expressly included in the scope.

11. Hosting, Maintenance, and Support

Unless expressly included in the proposal, the project fee does not include ongoing hosting, maintenance, monitoring, backups, or technical support after delivery. Ongoing services must be documented separately, including duration, fees, response times, and limitations.

The Service Provider will correct reproducible defects that cause the delivered software to materially fail to meet agreed specifications when reported during the agreed warranty period.

Warranty Period: [e.g., 30 days from final acceptance]

The warranty does not cover issues caused by unauthorized modifications, misuse, unsupported third-party changes, or features outside the scope, except where applicable law requires otherwise. A warranty does not replace a separate maintenance agreement.

12. E-Commerce and Business Compliance

For e-commerce or business applications, the Client is responsible for product and pricing accuracy, order processing, delivery, returns, refunds, customer communications, applicable taxes, registrations, consumer disclosures, and lawful collection and handling of personal information.

The Service Provider is responsible for the technical deliverables expressly agreed in the scope. Unless expressly agreed otherwise, the Service Provider does not act as seller of the Client's products and does not guarantee sales, profits, traffic, or business performance.

13. Privacy and Data Protection

Each Party will comply with data protection obligations applicable to its role and activities. The Client must ensure information supplied to the Service Provider may lawfully be shared for the project.

If the Service Provider processes personal data on the Client's behalf, the Parties will establish additional data-processing terms where required by law. Each Party will use reasonable measures to protect information within its responsibilities.

14. Cancellation and Termination

Either Party may request termination by written notice in accordance with the agreed cancellation terms.

If the Client cancels, the Client must pay for work completed and approved, non-cancellable expenses incurred up to the effective cancellation date. Refunds of advance payments will be calculated under the agreed cancellation terms and applicable law. The Parties will agree on handover of completed deliverables, subject to applicable payment obligations and legal requirements.

Either Party may terminate for material breach if it is not remedied within [14] days after written notice, unless a different period is agreed or immediate termination is permitted by law. Confidentiality, outstanding payment obligations, and provisions intended to survive termination will continue to apply.

15. Limitation of Liability

To the extent permitted by applicable law, neither Party will be liable for indirect or consequential losses arising from this Agreement. Any monetary liability cap, exclusions, and exceptions should be specified in the approved proposal or a written amendment and reviewed for enforceability.

Nothing in this Agreement excludes or limits liability where such exclusion or limitation is prohibited by law.

16. Force Majeure

Neither Party will be responsible for delay caused by events beyond its reasonable control, such as natural disasters, government actions, widespread network outages, or comparable events. The affected Party will notify the other where reasonably practicable and take reasonable steps to reduce the impact.

This section does not automatically cancel payment obligations for work already completed or override mandatory legal rights.

17. Dispute Resolution and Governing Law

The Parties will first attempt to resolve disputes through good-faith discussions. If unresolved, either Party may seek remedies through competent courts or another dispute-resolution process applicable to the Agreement.

This Agreement is intended to be governed by the laws of India, subject to applicable mandatory legal requirements.

Agreed jurisdiction, if legally appropriate: [City, State, India]

18. Changes to the Agreement

Material changes to scope, project price, delivery timeline, payment schedule, or deliverables must be recorded in writing and approved by both Parties. Approval may be provided through signed documents or another legally valid method agreed by the Parties.

19. Entire Agreement

This Agreement, together with the approved project proposal, quotation, and applicable annexures, forms the agreement between the Parties for the specified project. The Parties should specify which document takes priority if documents conflict. Any amendment must be agreed in writing.

20. Signatures and Acceptance

By signing below, the Parties confirm that they have read and understood this Agreement and agree to its terms.

FOR THE SERVICE PROVIDER	FOR THE CLIENT
Name: _____	Name: _____
Business Name: _____	Business Name (if applicable): _____
Signature: _____	Signature: _____
Date: _____	Date: _____

Important: This is a general template, not legal advice or a guarantee of enforceability. Complete all placeholders, choose one intellectual-property option, align it with the project proposal, and obtain appropriate legal review before use.